

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2025CLCL040869: TD BANK USA, NA vs MICHELLE A GONZALEZ

09/14/2026 in Department 21

Motion for Judgment on the Pleadings

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Plaintiff’s Motion for Judgment on the Pleadings and Plaintiff’s Request for Judicial Notice (Unopposed).

Tentative Ruling:

Plaintiff TD Bank USA, NA’s Request for Judicial Notice of the Court’s August 25, 2025, Minute Order in this matter is GRANTED.

Plaintiff TD Bank USA, NA’s Motion for Judgment on the Pleadings is GRANTED WITHOUT LEAVE TO AMEND.

Plaintiff shall give notice within two (2) court days.

Analysis:

The time for Plaintiff to demur to Defendant’s Answer has expired. Plaintiff’s Motion for Judgment on the Pleadings is properly before the Court. (Code Civ. Proc., § 438.) The Court may take judicial notice of its August 25, 2025 Order regarding Plaintiff’s motion to deem requests for admissions admitted. (Evid. Code, § 452, subd. (d).) Defendant did not establish any defect in her admission that could by a reasonable possibility be cured. Pursuant to the August 25, 2025 Order, and in consideration of the facts thereby deemed true, cause exists to GRANT Plaintiff’s Motion for Judgment on the Pleadings without leave to amend.